

How to use this form:

- Paper forms must be submitted in person at a Service BC Centre that accepts Residential Tenancy Branch (RTB) forms or at the Burnaby RTB office.
- The online application is available 24/7 from any computer or mobile device: <https://www2.gov.bc.ca/gov/content/housing-tenancy/residential-tenancies/help#applyonline>
- If the tenant poses an **immediate and severe** threat to the landlord, other occupants, or the property, use #RTB-12L-EXH Landlord's Application for Dispute Resolution—Expedited Hearing.
- If you served your tenant a 10 Day Notice to End Tenancy, you may be eligible for a Direct Request hearing. For more information, visit: www2.gov.bc.ca/gov/content/housing-tenancy/residential-tenancies/solving-problems/tenancy-dispute-resolution/direct-request-process

Important information about your application:

- Your application will not be processed unless all required information is provided and legible and a \$100 filing fee has been received or waived.
- Required information includes key dispute information, at least one issue selected, at least one respondent with full name and service address provided, and a signature
- **You must be able to serve documents to your tenant(s) or representative(s).** The applicant will receive a Notice of Dispute Resolution Proceeding package to serve all respondents and may be required to declare service by a deadline. The RTB may refuse to consider an application that is not served properly, and your filing fee will not be refunded.
- If you cannot serve documents using an approved method (like in person, registered mail), you can apply for substituted service to serve documents in a different way. It allows you to request permission to serve the documents using an alternate method. Complete and submit form #RTB-13 Application for Substituted Service with this application to serve using an alternate method.

Form Sections

Section 1: Key Dispute Information

Section 4: Other Landlord Issues

Section 2: Respondent Information

Section 5: Declaration

Section 3: Common Requests for Order(s) of Possession

SECTION 1: KEY DISPUTE INFORMATION

Are you seeking resolution by the Direct Request Process in relation to a 10 Day Notice you served?

No

Yes (**Do not use this form, use #RTB-12L-DR**)

Is the tenant still living in the rental unit?

No (**Do not use this form, use #RTB-12L-PT**)

Yes

What is being rented?				
A home, suite, or apartment		A site in a manufactured home park		
Does the tenant own the manufactured home? (if applicable)				
No		Yes		
Is this application in response to an active dispute file against you?				
No		Yes— Active File #:		
Was a security deposit provided to the landlord by the tenant?				
No		Yes— Amount \$:		
Was a pet damage deposit provided to the landlord by the tenant?				
No		Yes— Amount \$:		
Rental Unit or Site Address				
Site/Unit #	Street # and Name	City	Province	Postal Code
Primary Applicant: (The primary applicant is responsible for serving documents to all parties)				
The primary applicant is a(n):		Individual	Business	
Business Name (if a business):				
First and Middle Names		Last Name		
Email Address (for RTB use only)		Phone Number (required)		
Tick here if email is preferred method of contact		Tick here if phone is preferred method of contact		
Site/Unit #	Street # and Name	City	Province	Postal Code
How does the primary applicant want to receive the Notice of Dispute Resolution Proceeding?				
By email (email address must be provided above and you must be able to print documents)				
Pick up at a Service BC Centre or the Burnaby RTB Office during business hours				
Secondary Applicant (if applicable)				
The secondary applicant is a(n):		Individual	Business	Agent or Lawyer
Business Name (if a business):				
First and Middle Names		Last Name		
Email Address (for RTB use only)		Phone Number		
Site/Unit #	Street # and Name	City	Province	Postal Code

Use form #RTB-26 Schedule of Parties to include additional parties and/or separate mailing addresses. Submit the completed form #RTB-26 with this application: <https://www2.gov.bc.ca/gov/content/housing-tenancy/residential-tenancies/calculators-and-resources/tenancy-forms>

I am including a form #RTB-26 for additional parties and/or mailing addresses

SECTION 2: RESPONDENT INFORMATION

First and Middle Names		Last Name		
Email Address (for RTB use only)		Phone Number		
Site/Unit #	Street # and Name	City	Province	Postal Code

Second Respondent Information

First and Middle Names		Last Name		
Email Address (for RTB use only)		Phone Number		
Site/Unit #	Street # and Name	City	Province	Postal Code

I am including a form #RTB-26 for additional parties and/or mailing addresses

SECTION 3: COMMON REQUESTS FOR ORDER(S) OF POSSESSION (Select all that apply)

I want to recover my \$100 filing fee for this application

I issued a 10 Day Notice to End Tenancy for unpaid rent and/or utilities (RTB-30)

Date you served the Notice: (DD/MM/YYYY)

Effective move out date stated on the Notice: (DD/MM/YYYY)

Did the 10 Day Notice to End Tenancy include unpaid utilities? (If yes, you must have already provided the tenant with a 30 day written demand letter)	Yes	No
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If yes, did you issue a repayment plan to the tenant?	Yes	No
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How was the 10 Day Notice to End Tenancy served?

In person Posted on the door In mailbox/slot By Email Other:

Please describe the amount(s) the tenant has not paid:

SECTION 3: COMMON REQUESTS FOR ORDER(S) OF POSSESSION (CONT.)

I issued a One Month Notice to End Tenancy for Cause (RTB-33) (See section 4 for One Month Notice to End Tenancy for End of Employment)

Date you served the Notice: (DD/MM/YYYY)

Effective move out date stated in the Notice: (DD/MM/YYYY)

How was the One Month Notice to End Tenancy served?

In person Posted on the door In mailbox/slot By Email Other:

Describe the reason(s) why you are requesting possession of the unit or site:

I issued a:

Three Month Notice to End Tenancy for Purchaser's Use of the Property (RTB-32P)

Three Month Notice to End Tenancy for Landlord's Use of the Property (RTB-32L)

Four Month Notice to End Tenancy to Convert the Rental Unit for Caretaker Use (RTB-29C)

(see section 4 for Four Month Notice to End Tenancy for demolition or other conversions of rental unit)

Date you served the Notice: (DD/MM/YYYY)

Notice ID:

Effective move out date stated in the Notice: (DD/MM/YYYY)

How was the Notice to End Tenancy served?

In person Posted on the door In mailbox/slot By Email Other:

Describe the reason(s) why you are requesting possession of the unit or site:

SECTION 4: OTHER LANDLORD ISSUES

Monetary Issues

I want to recover my \$100 fee for filing this application.

I want to recover unpaid rent and/or utilities from the tenant.

Total amount you are seeking: \$

Describe the amount(s) the tenant has not paid:

I want compensation for damages to the unit, site, or property.

Total amount you are seeking: \$

Provide a complete list of the items you are requesting compensation for:

I want compensation from the tenant for other monetary losses under the Act or tenancy agreement.

Total amount you are seeking: \$

Provide a complete list of the items you are requesting compensation for:

Do you want to hold the deposit(s) against the amount owed?

Yes

No

Other Requests for Orders of Possession

I want to recover my \$100 fee for filing this application.

I want an Order of Possession because:

A Mutual Agreement to End Tenancy was signed

The tenant has given a written notice to end tenancy

I want the tenant to vacate the property at the end of the fixed term tenancy

I served a One Month Notice to End Tenancy for End of Employment (RTB-33)

I served a Four Month Notice to End Tenancy for Landlord's Use (RTB-32L)

I served a Two Month Notice because the tenant doesn't qualify for subsidized unit (RTB-32Q)

I served a Four Month Notice to End Tenancy for demolition or conversion of rental unit (RTB-29) I

served a 12 Month Notice to End Tenancy for conversion of a Manufactured Home Park (RTB-31)

Date you served the Notice: (DD/MM/YYYY)

How was the Notice to End Tenancy served?

In person

Posted on the door

In mailbox/slot

By Email

Other:

Describe the reason(s) why you are requesting possession of the unit or site:

I want to add an issue that is not listed in this application form and I am including form #RTB-12L-O.

SECTION 5: DECLARATION

By signing below, I certify that:

- I am the primary applicant or an agent of the primary applicant and all information provided in this application is true, correct, and complete to the best of my knowledge.
- I understand it is a legal offense to provide false or misleading information and evidence to the RTB.
- I have the authority to act on behalf of the applicant(s) as the primary applicant for this dispute and I will share all communication about this dispute with the other applicant(s).
- I authorize the Residential Tenancy Branch to enter this information on my behalf.

Date (DD/MM/YYYY)

Name of primary applicant (print)

Signature of primary applicant

Residential Tenancy Branch Contact Information

Email: HSRTO@gov.bc.ca **Note: Evidence cannot be submitted by email.**

Website: www2.gov.bc.ca/gov/content/housing-tenancy/residential-tenancies

Information Line: 1-800-665-8779 (toll free)

In Person: **Lower Mainland:** 400-5021 Kingsway, Burnaby, BC V5H 4A5
Outside Lower Mainland: Visit Service BC Offices: www.servicebc.gov.bc.ca